

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-16

**WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. — POSSIBLE VIOLATIONS
OF 46 U.S.C. § 41102(C)**

THIRD JOINT STATUS REPORT

As directed by the Administrative Law Judge’s Order Requiring Joint Status Report (Order), served December 16, 2022, the Bureau of Enforcement, Investigations, and Compliance (“BEIC”, successor to the Bureau of Enforcement) and Respondents Wan Hai Lines, Ltd. And Wan Hai Lines (USA) Ltd. (collectively, “Wan Hai”) submit this Third Joint Status Report and state as follows:

Counsel for BEIC and Wan Hai (the Parties) last conferred on Wednesday, December 21, 2022, to discuss possible settlement, dates for depositions, and the litigation schedule at large. The Parties discussed whether a settlement of this proceeding is possible and will continue those discussions. The Parties continued to coordinate with each other about outstanding discovery while considering the time permitted. Based on those discussions and agreements, the Parties propose the following tentative schedule of deadlines:

January 30, 2023	Depositions to conclude;
February 3, 2023	Last day to serve discovery requests;
February 10, 2023	End of discovery;
February 24, 2023	Parties submit joint stipulations of facts and joint appendix;
March 3, 2023	BEIC’s brief, findings of fact, and appendix deadline;

March 17, 2023 Respondent's brief, findings of fact, appendix, and response deadline
March 24, 2023 BEIC's reply brief deadline.

The tentative nature of the proposed schedule is due to the Parties' intent to notify the ALJ that they are contemplating an avenue to potentially alter the expedited nature of this proceeding and enlarge the four-month deadline of the ALJ's initial decision per the Commission's Order Affirming Denial of Joint Settlement Motion served onto the ALJ and Respondents on December 15, 2022 and BEIC on December 16, 2022. The Parties will provide a revised schedule to the ALJ in the event that the deadline for the initial decision is readjusted by the Commission.

DATED: December 23, 2022

Respectfully submitted,

Rohde, Wayne
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CERTIFICATE OF SERVICE

I hereby certify that on this 23rd day of December, a copy of the foregoing Third Joint Status Report has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

Serena Lei-
Peng Tang

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